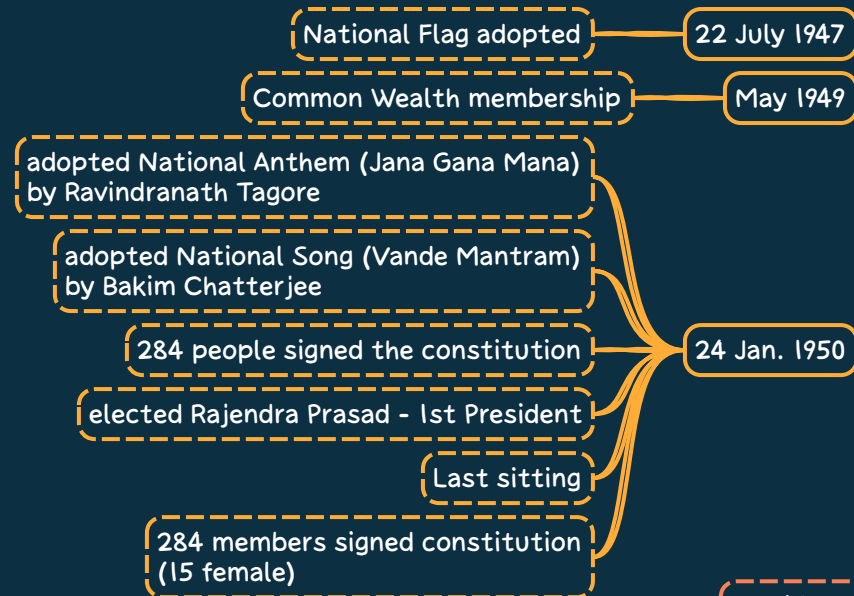
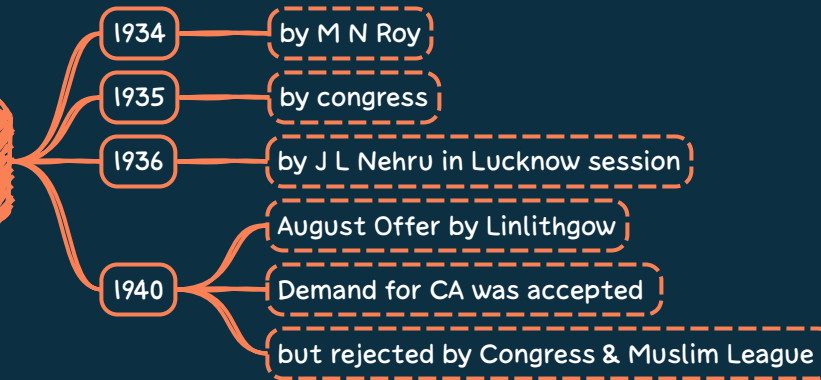




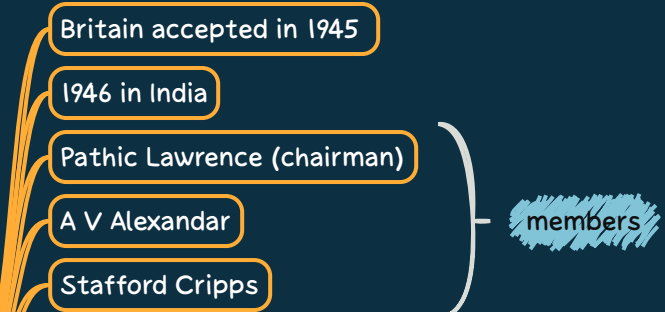
Important Dates



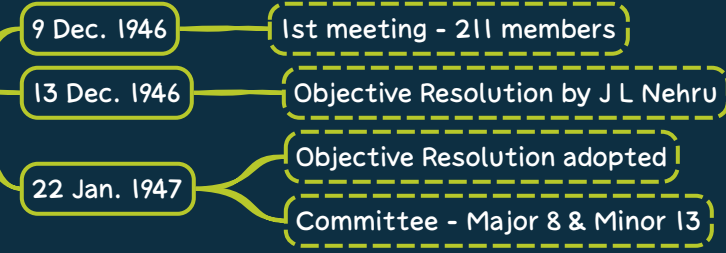
Demand of Constituent Assembly



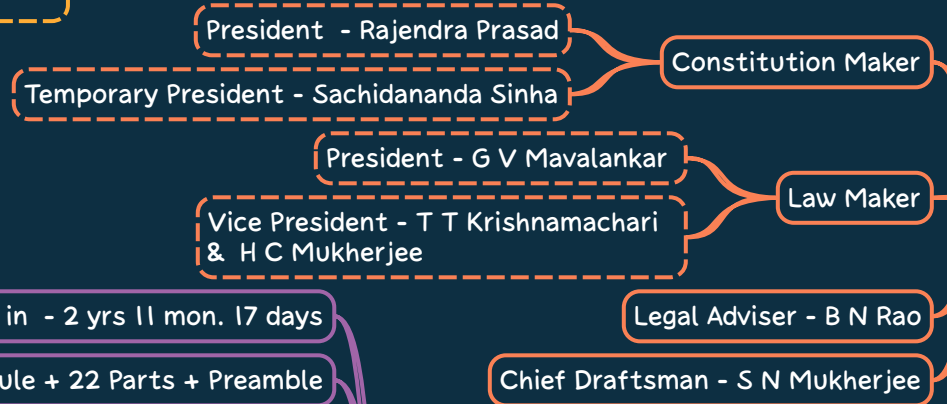
Cabinet Mission Plan



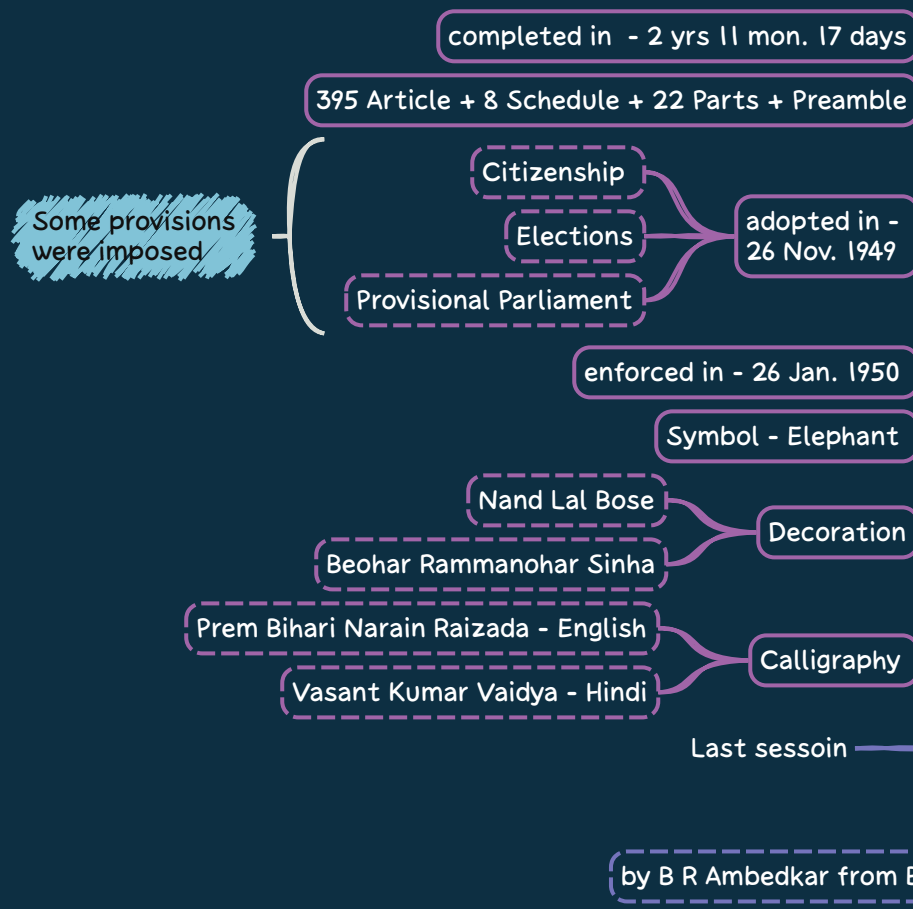
Constituent Assembly



Function



Constitution



Committee

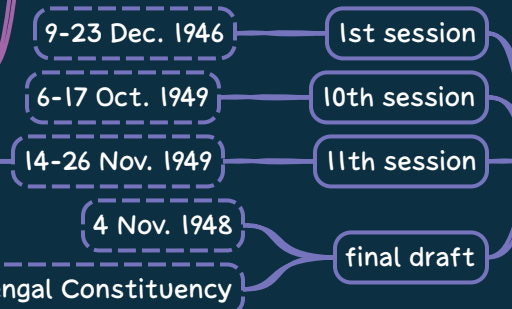
Major



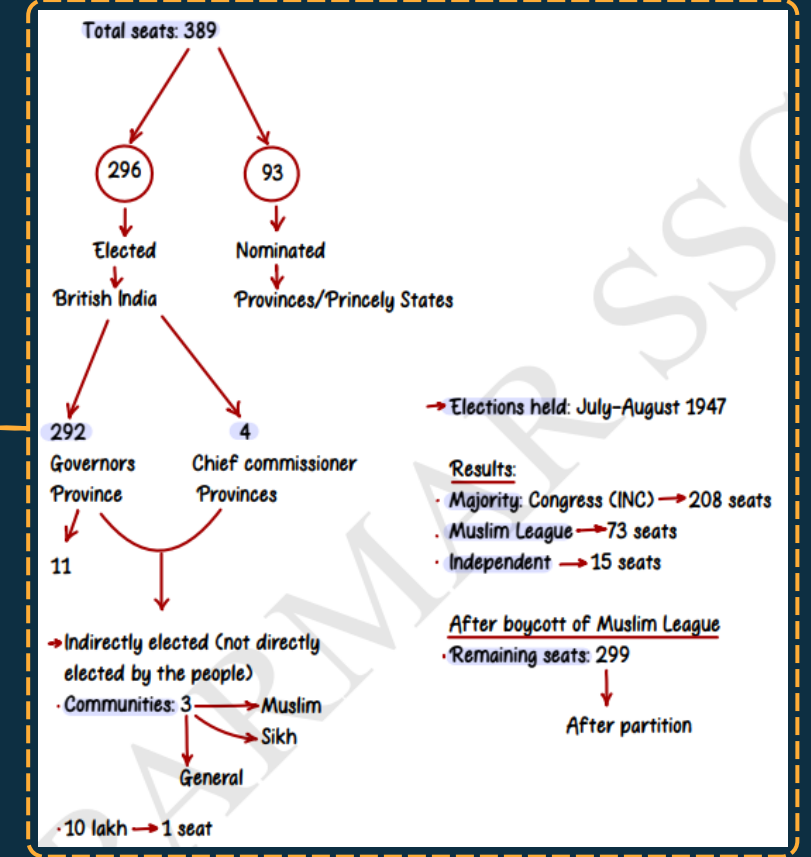
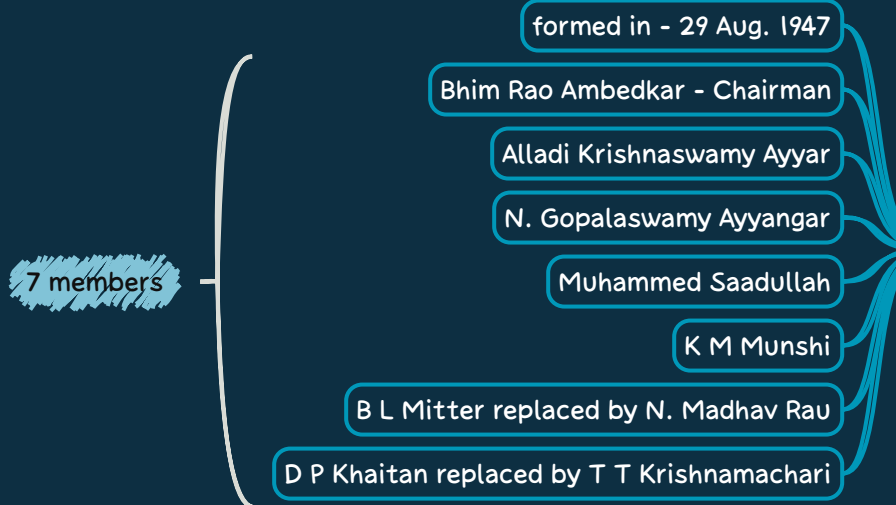
Minor

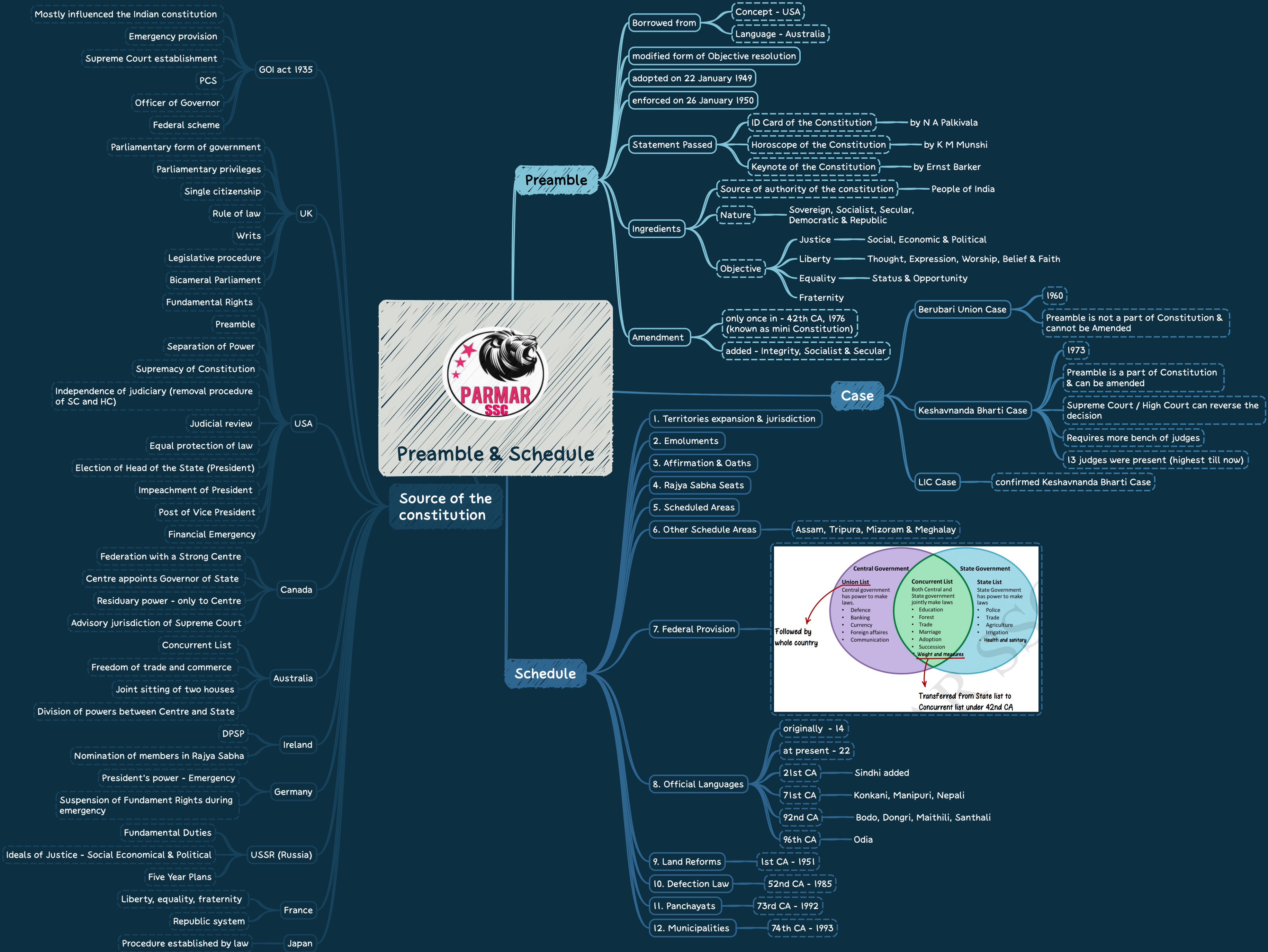


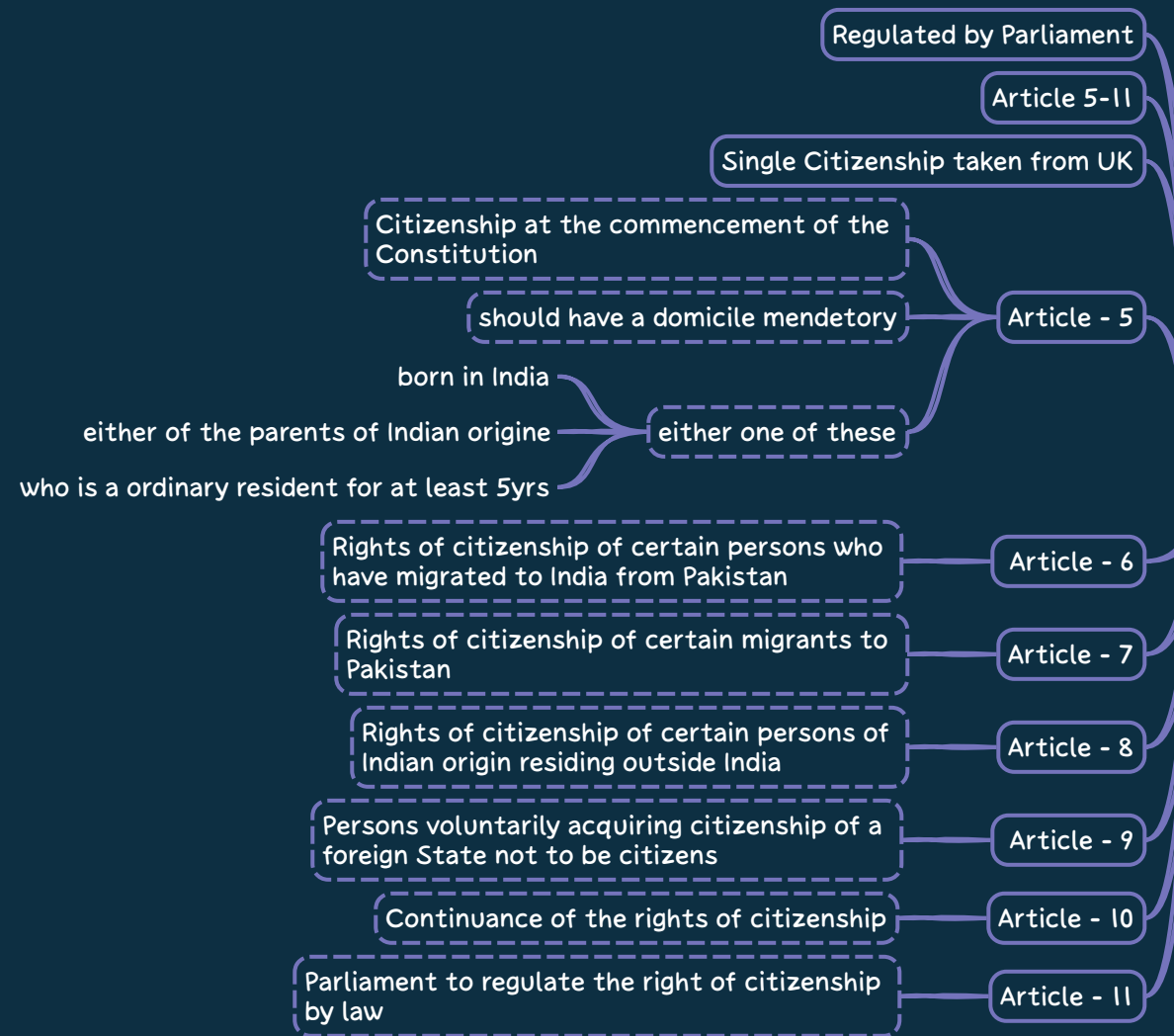
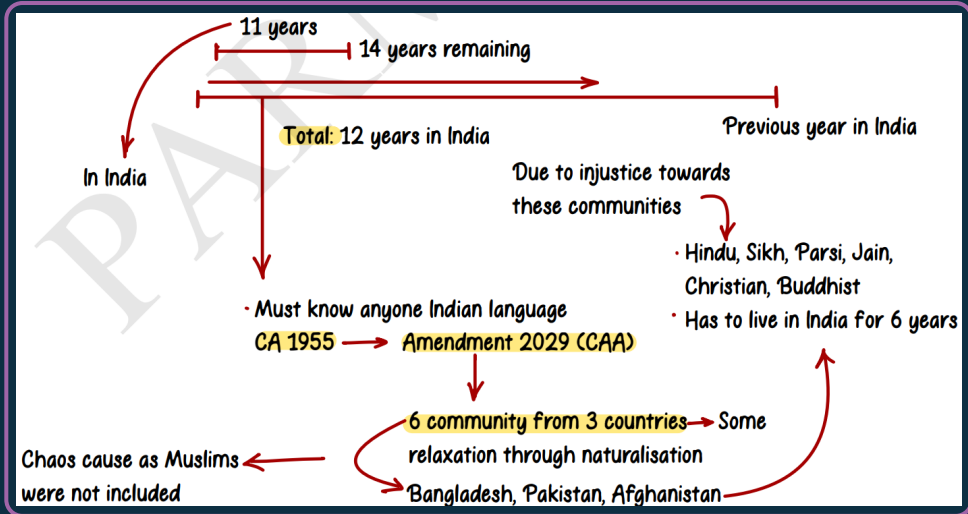
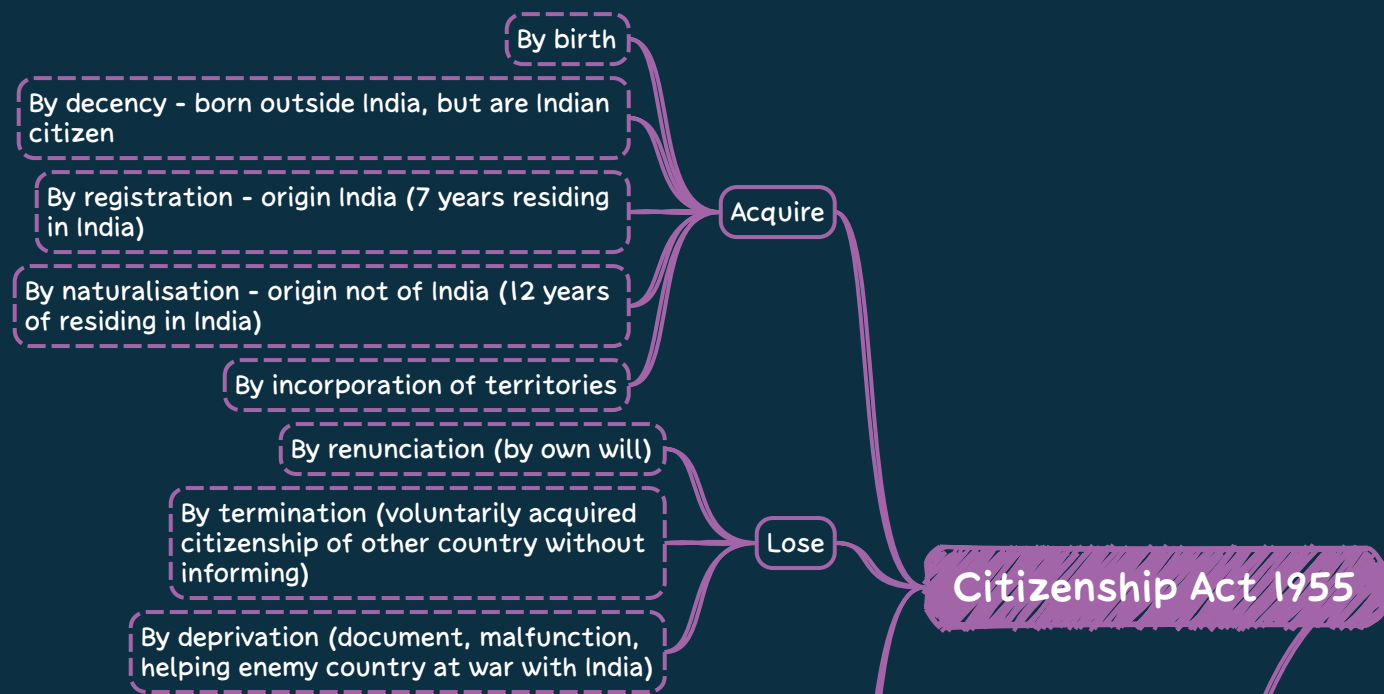
Important Session



Drafting Committee

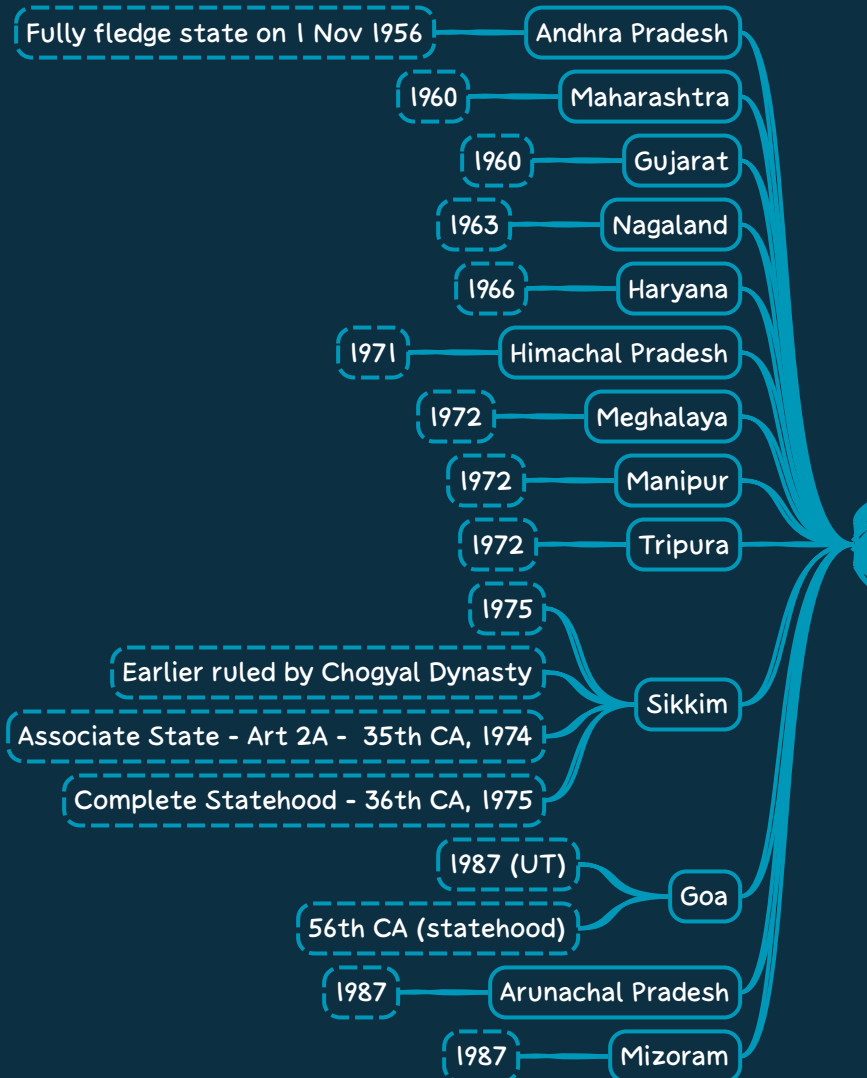




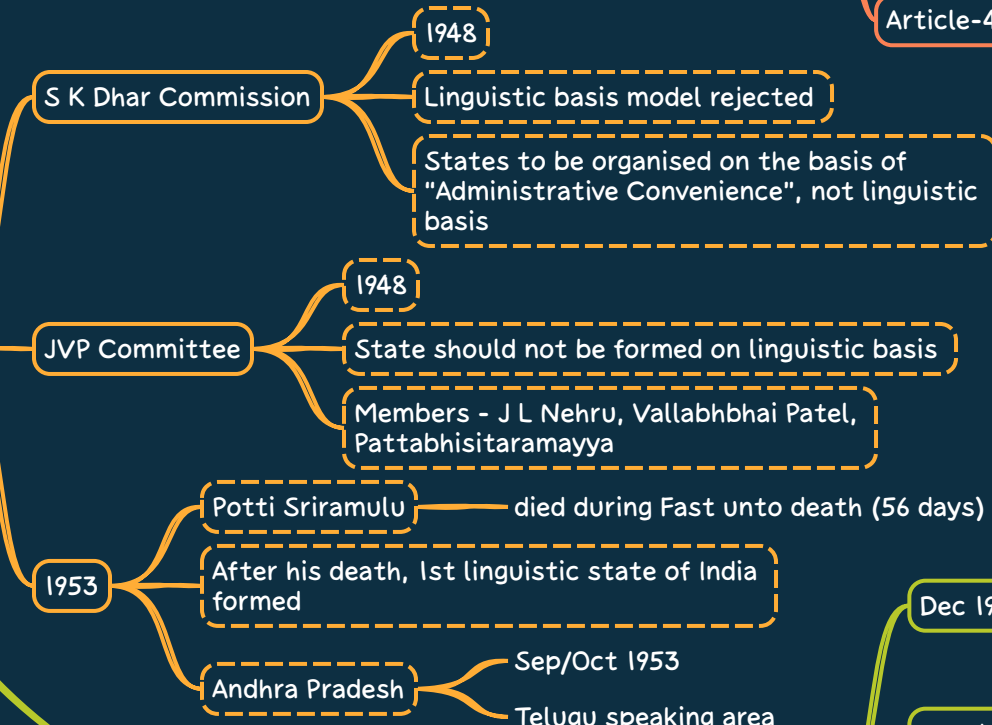


Article No.	Subject-matter
371	Special provision with respect to the states of Maharashtra and Gujarat.
371 - A.	Special provision with respect to the state of Nagaland.
371 - B.	Special provision with respect to the state of Assam
371 - C.	Special provision with respect to the state of Manipur
371 - D.	Special provisions with respect to the state of Andhra Pradesh or the state of Telangana
371 - E.	Establishment of Central University in Andhra Pradesh
371 - F.	Special provisions with respect to the state of Sikkim
371 - G.	Special provision with respect to the state of Mizoram
371 - H.	Special provision with respect to the state of Arunachal Pradesh
371 - I.	Special provision with respect to the state of Goa
371 - J.	Special provisions with respect to the state of Karnataka

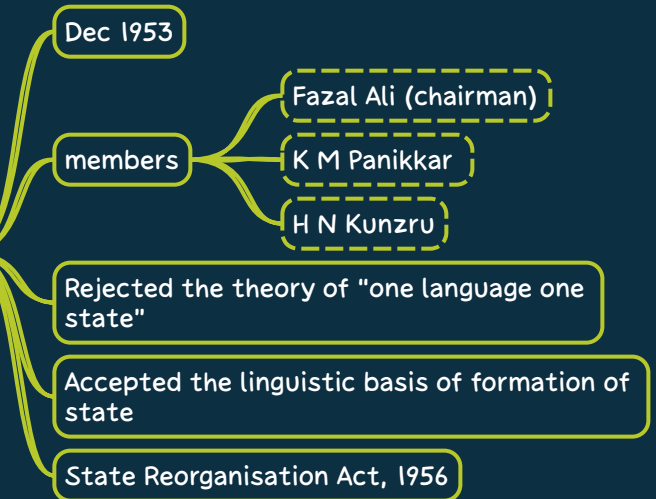
special powers



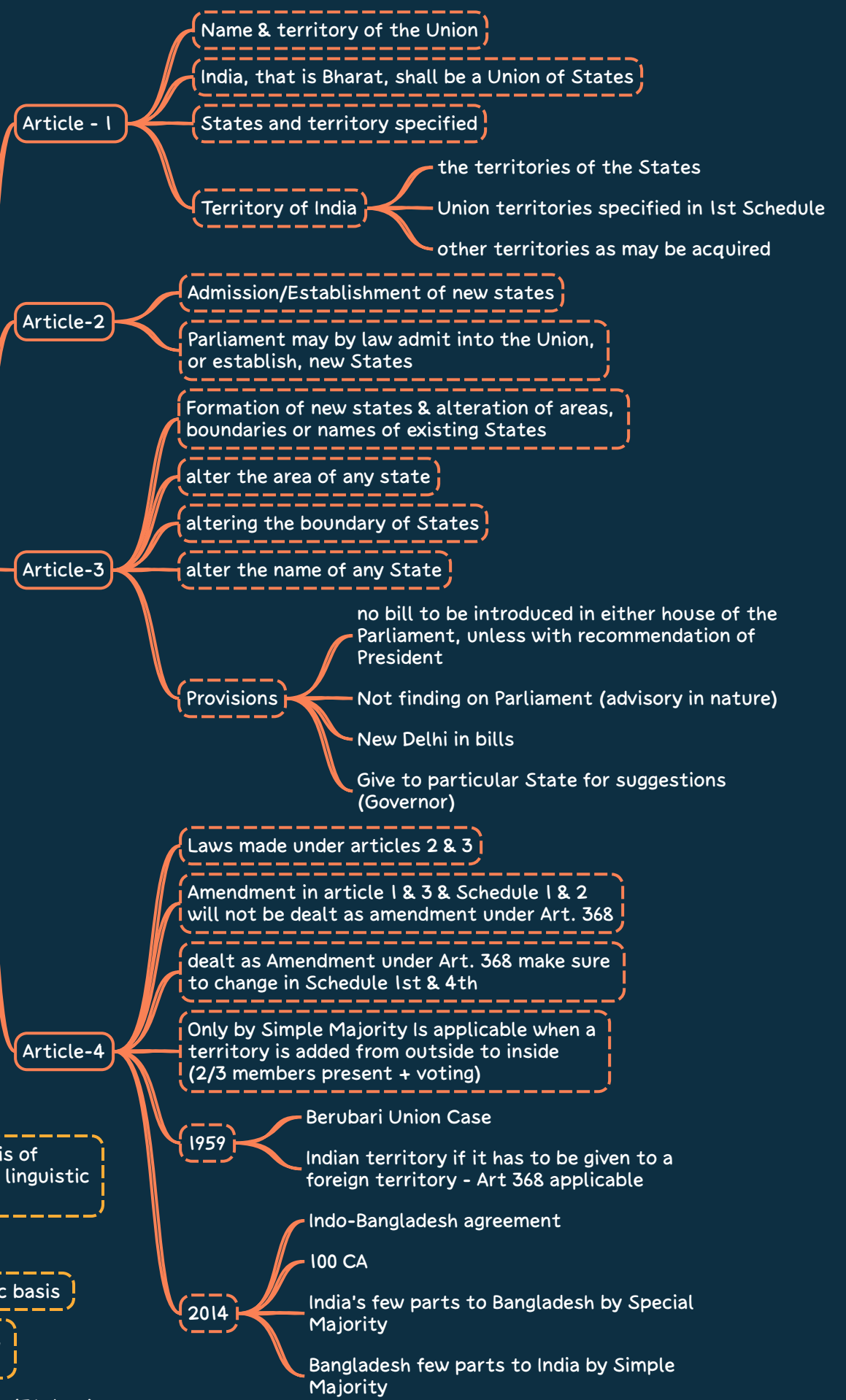
Linguistic Provision commission

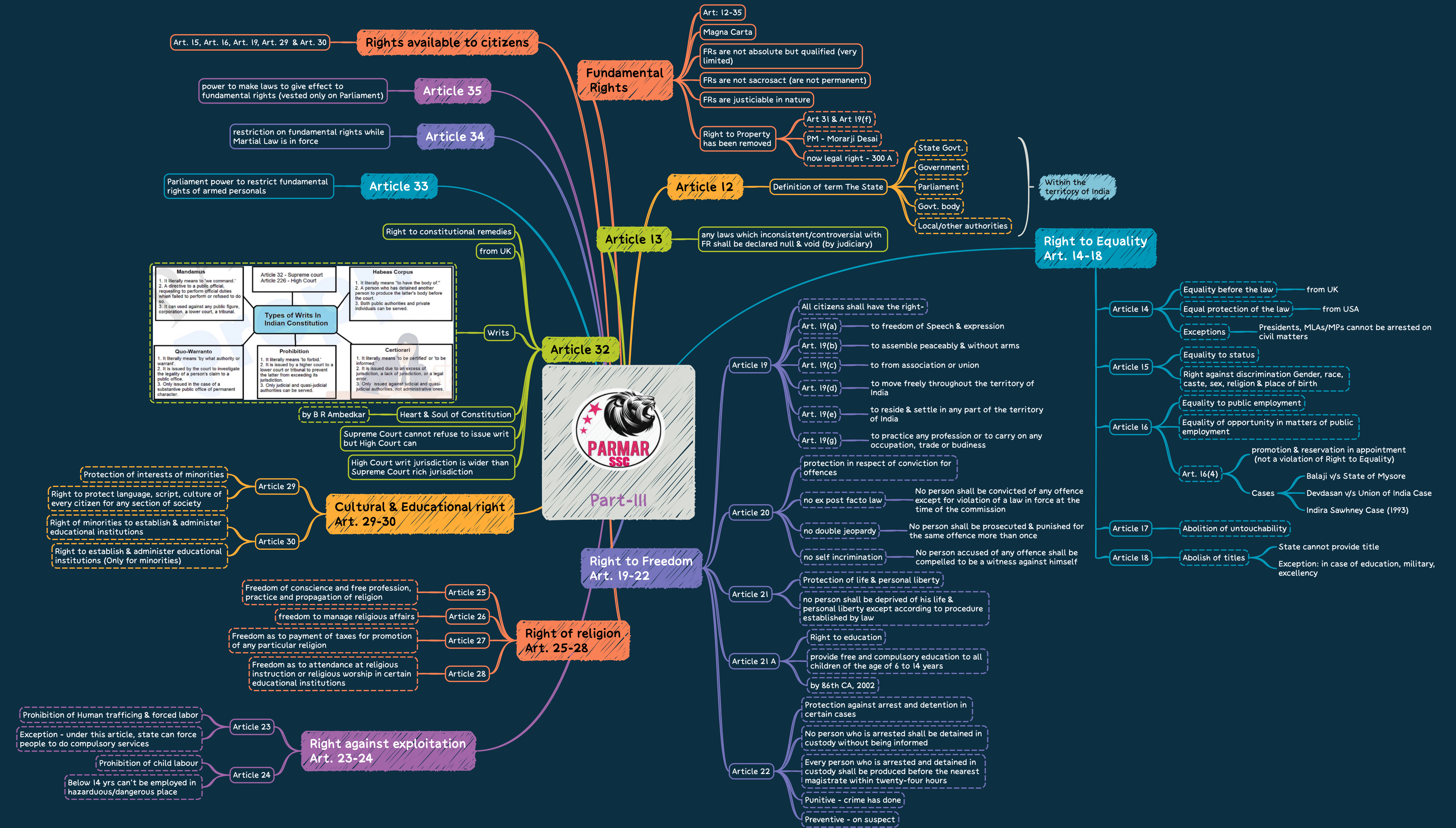


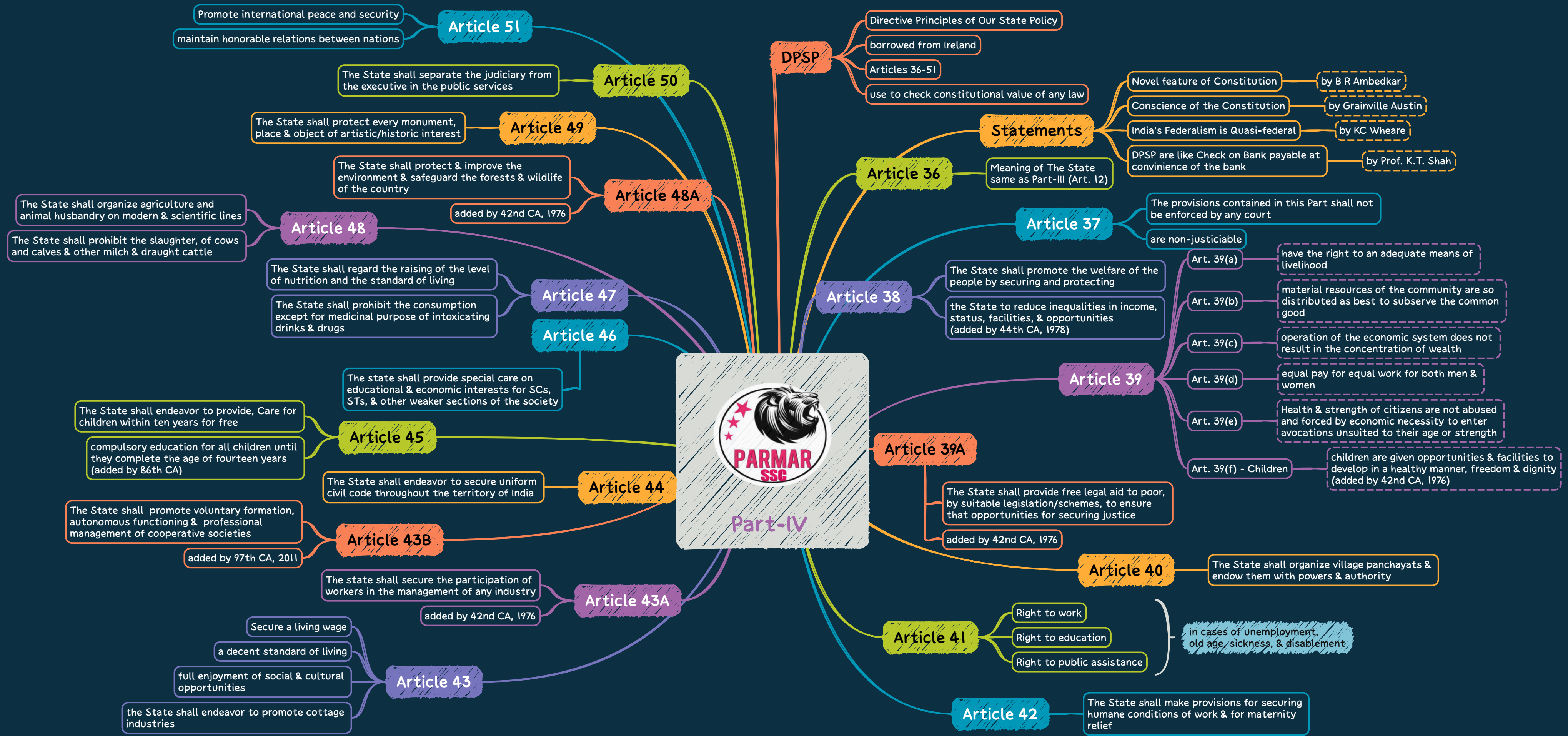
Fazal Ali Commission

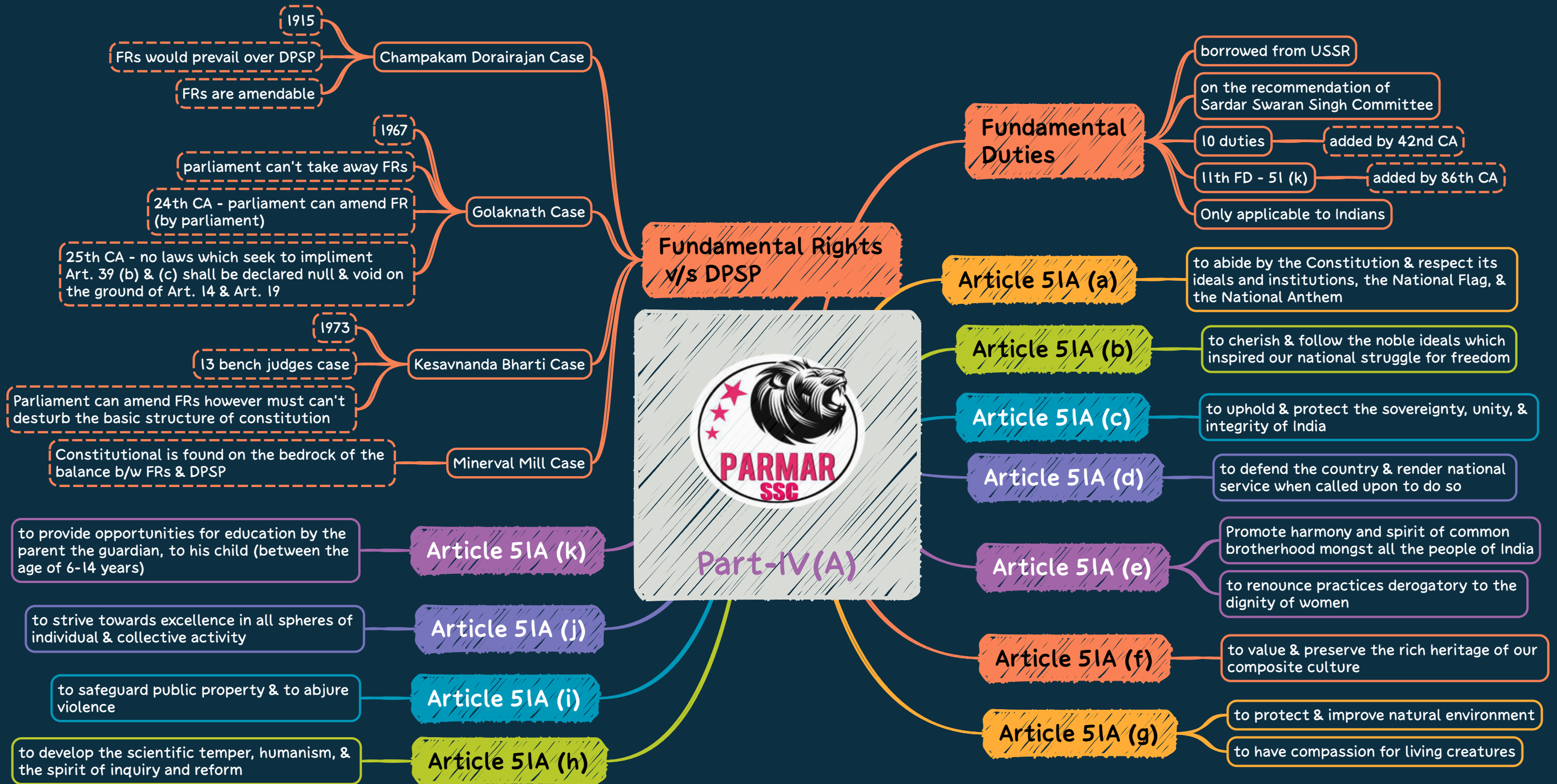


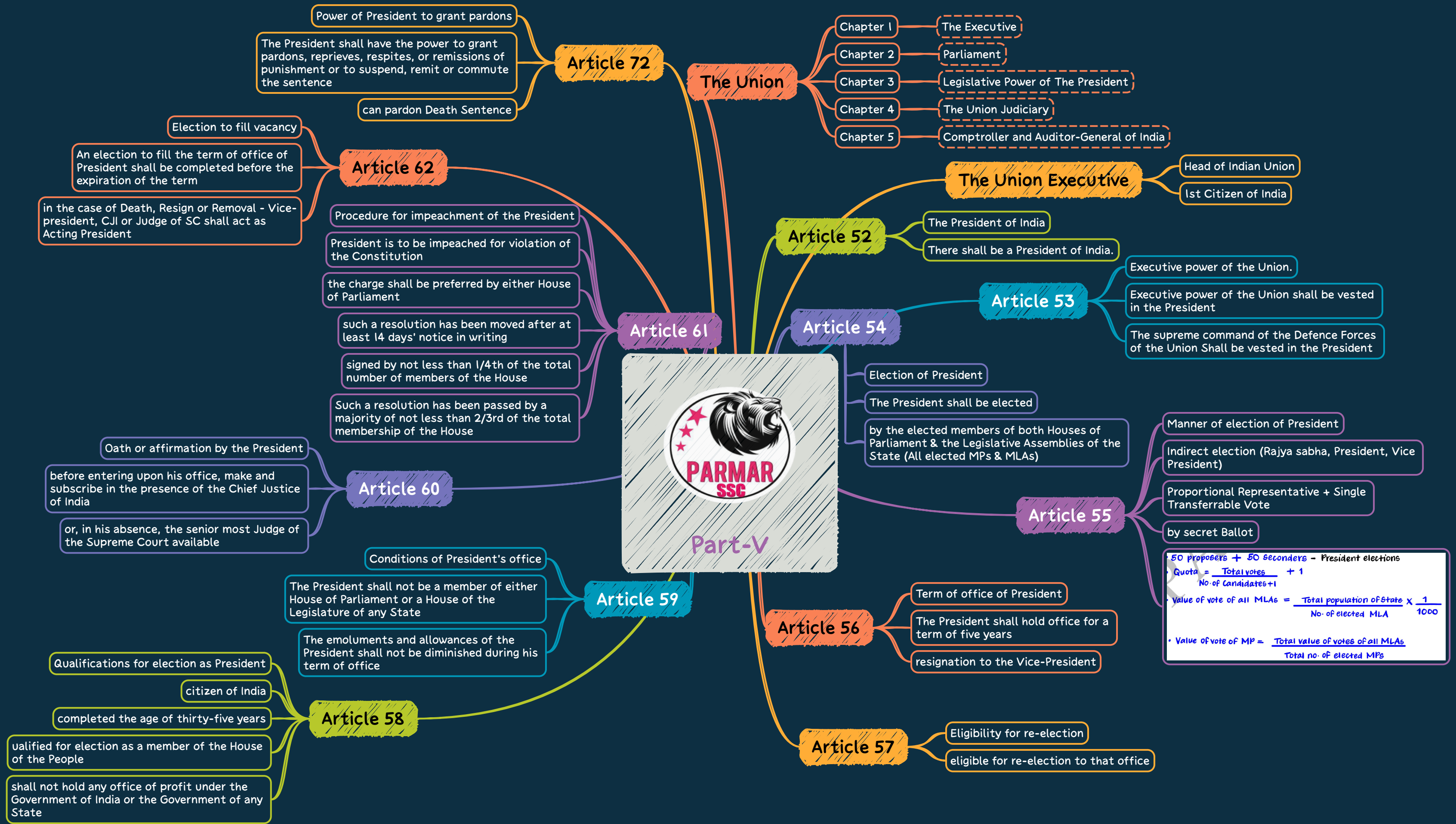
Part-I Union & Its territory











Matters relating to, or connected with, the election of a President or Vice-President

All election doubts & disputes in the election of President & Vice-President shall be inquired & decided by Supreme Court only

Article 71

Proportional Representation + Single Transferable Vote

President RS V.P

A person who votes — has power of multiple

Candidate vote →	A	B	C	D
1st preference	4	1	3	2
2nd preference	1	3	2	4
3rd preference	2	4	1	3

— 20 proposers + 20 electors as proposers

Preference based

1st preference Kisko mili hai?

Quota? — Winner ✓

Article 63

The Vice-President of India

There shall be a Vice-President of India.

Discharge of President's functions in other contingencies

Article 70

Article 64

The Vice-President to be ex officio Chairman of the Council of States

shall not hold any other office of profit

Oath or affirmation by the Vice-President.

Every Vice-President shall, before entering upon his office, make and subscribe before the President

Article 69

Article 65

The Vice-President to act as President or to discharge his functions during casual vacancies in the office, or during the absence, of President

Time of holding election to fill vacancy in the office of Vice-President

An election to fill a vacancy \shall be completed before the expiration of the term

An election to fill a vacancy in the office of Vice-President occurring because of his death, resignation or removal shall be held within 60 days

Article 68

Term of office of Vice-President

The Vice-President shall hold office for a term of five years

resignation to the President

Article 67

a Vice-President may be removed from his office by a resolution of the Council of States passed by a majority of all the then members of the Council and agreed to by the House of the People

A Vice-President shall continue to hold office until his successor enters his office



Article 66

Election of Vice-President

The Vice-President shall be elected by the members of both Houses of Parliament (All MPs)

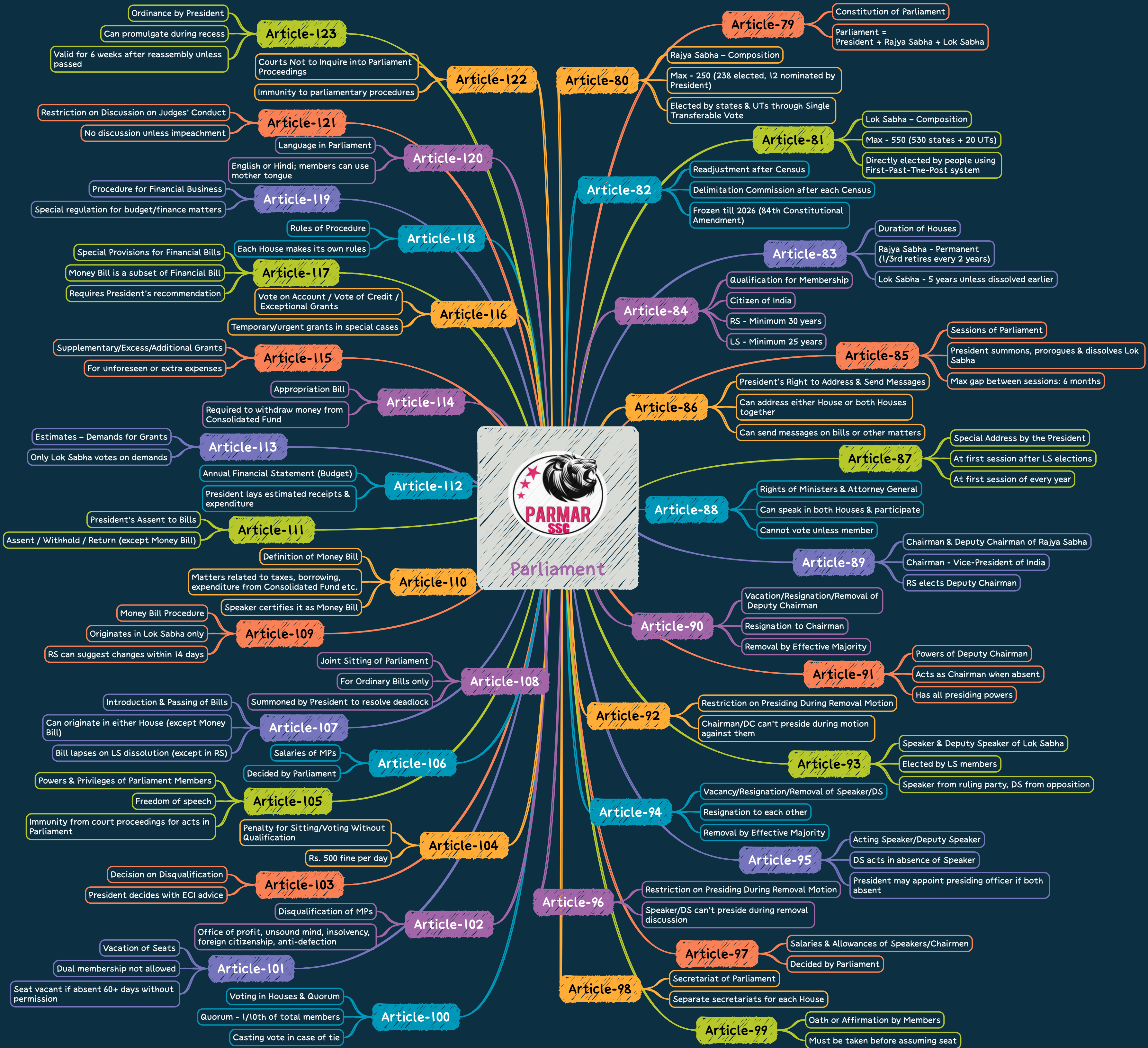
Proportional Representative + Single Transferrable Vote

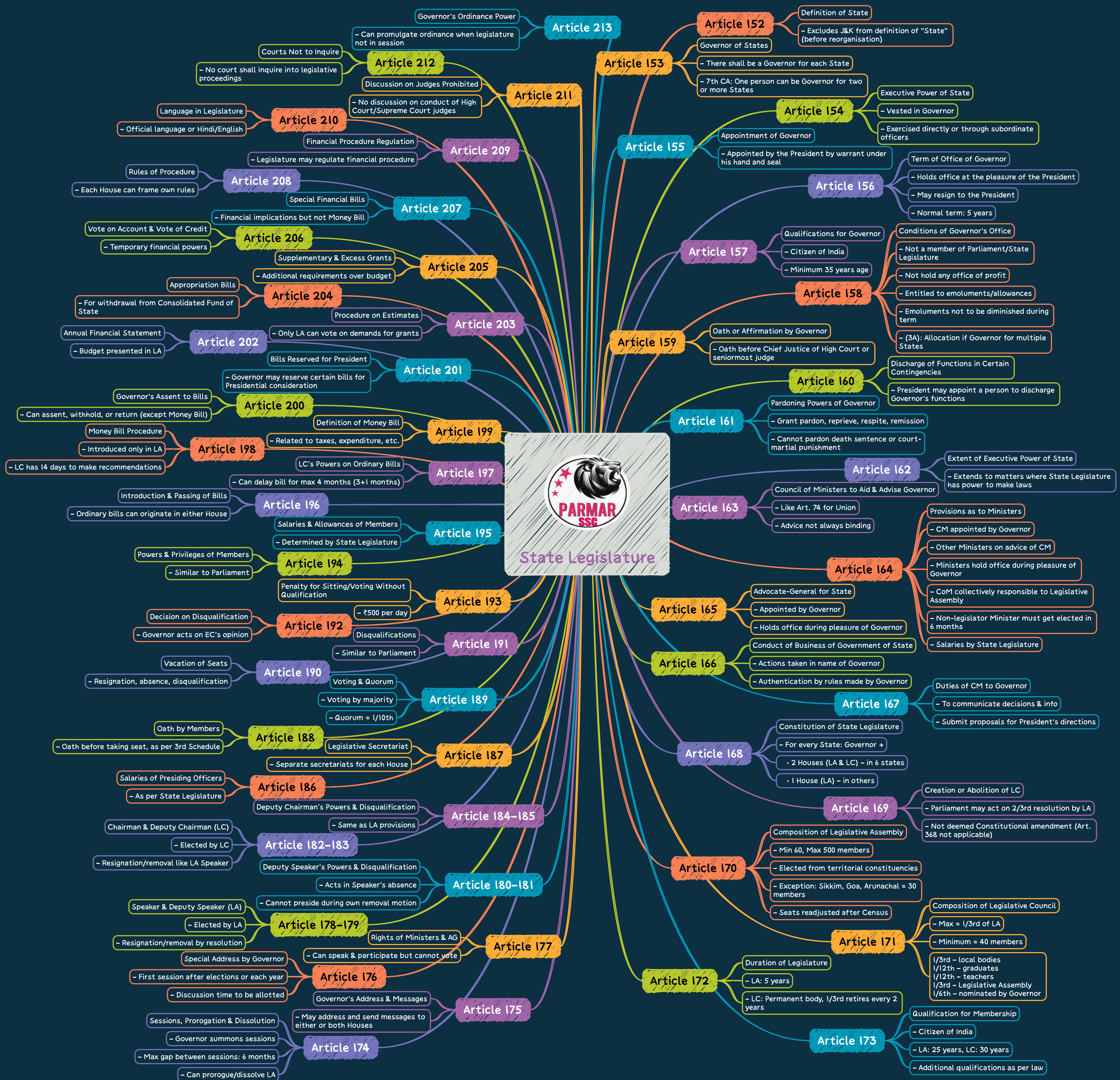
The Vice-President shall not be a member of either House of Parliament or a House of the Legislature of any State

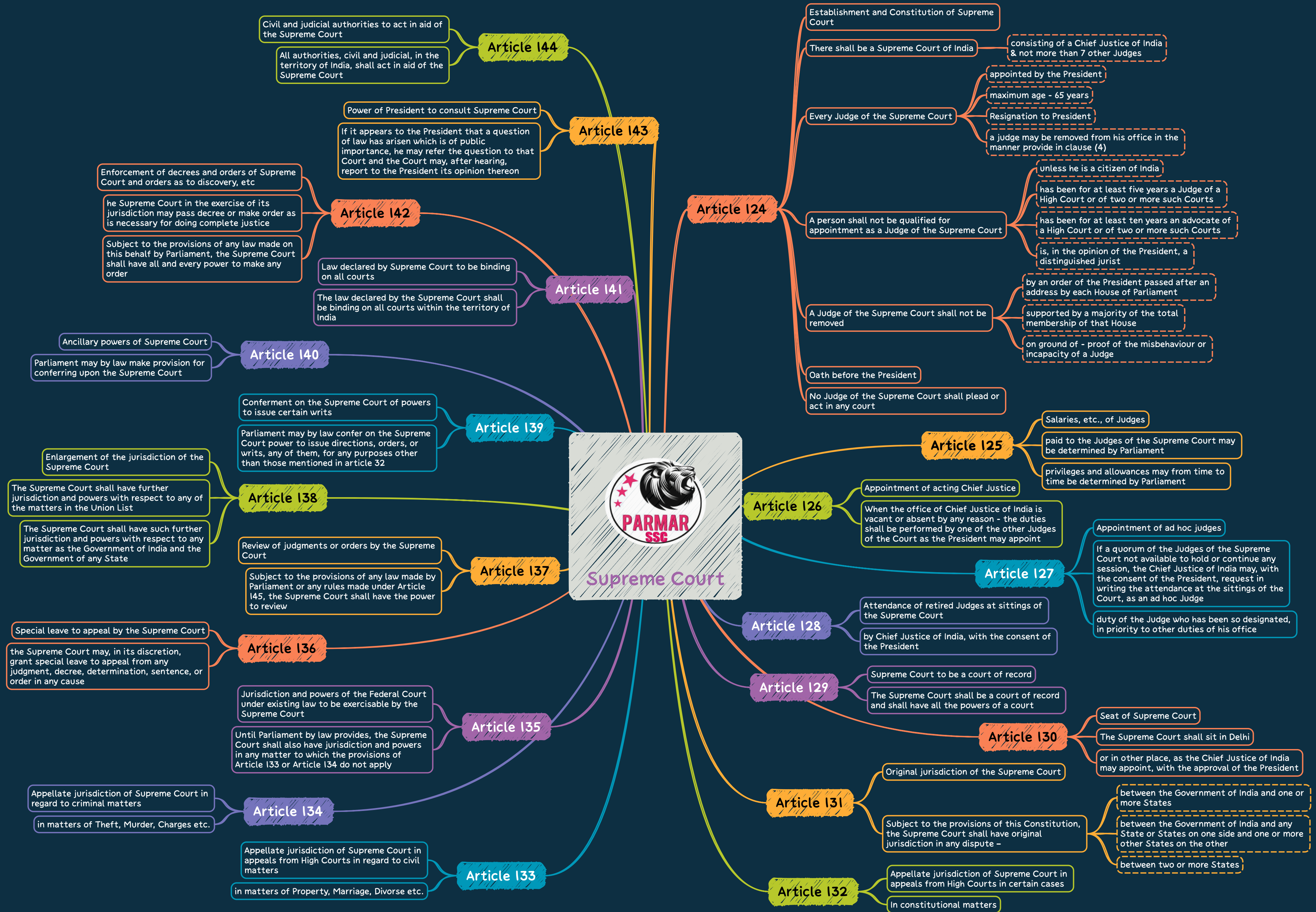
Eligible for election as Vice-President

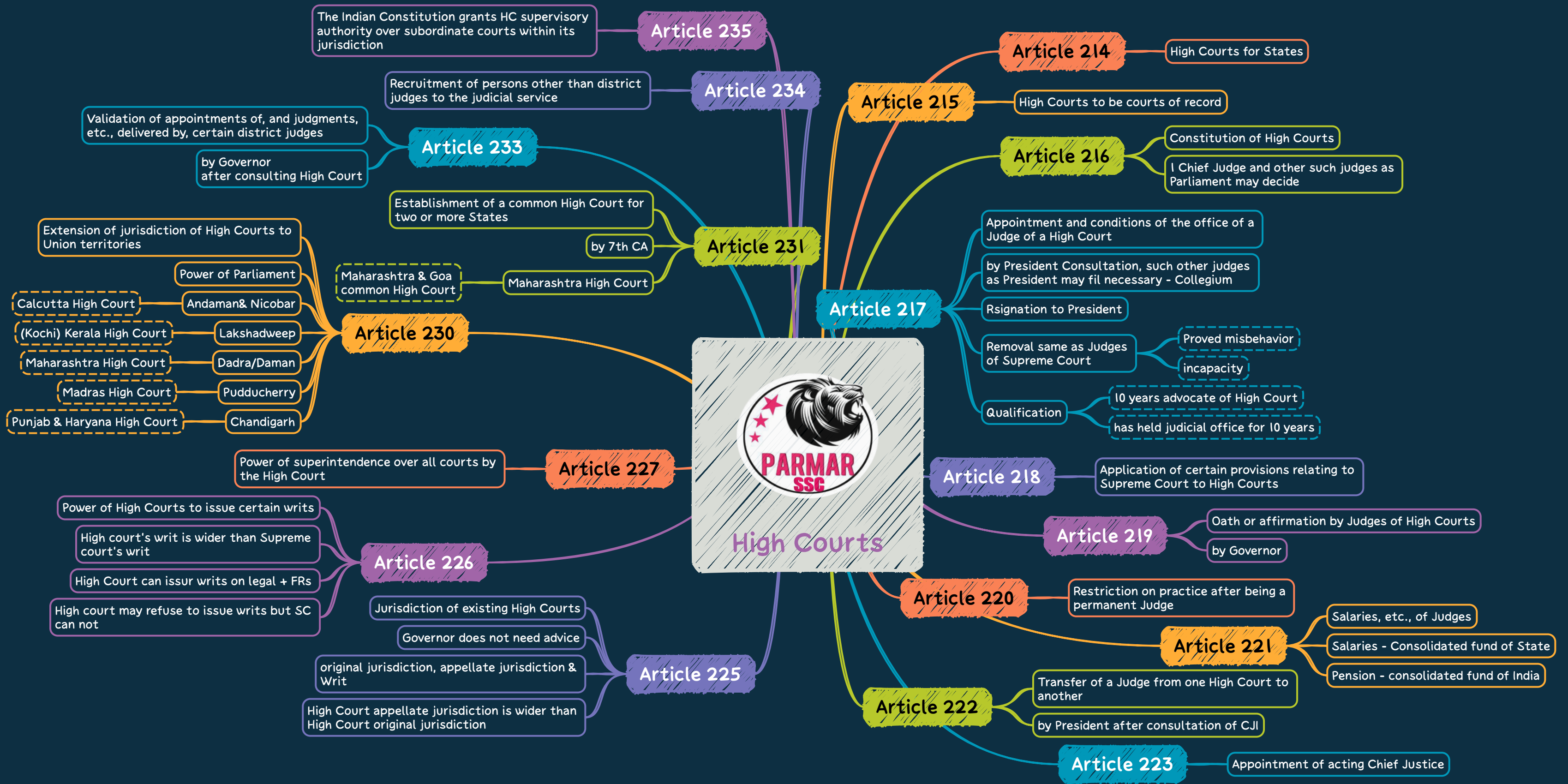
- citizen of India
- completed the age of 35 years
- qualified for election as a member of Rajya Sabha

Should not hold any office of profit under the Government of India or the Government of any State











Local Government

Municipalities

- Introduced through - 74th CA, 1992
- Part IXA, Article 243P-243ZG
- Under 12th Schedule - 18 Functional subjects
- First Municipal Corporation was set up in Madras in 1687-88
- 1870 - Lord Mayo presented resolution of financial decentralisation
- Ripon's resolution of 1882 - Magna Carta of Local Self Government

8 types

- Municipal Corporation
- Municipality
- Notified Area Committee
- Cantonment Board (Military)
- Township
- Town Area Committee
- Port Trust
- Special Purpose Agency

3 Types of Municipalities

- For a Transitional Area - Nagar Panchayat
- For a small Urban Area - Municipal Council
- For a larger Urban Area - Municipal Corporation

Article 243 O

Bar to interference by courts in electoral matters

- (a) Courts cannot interfere with the process of defining Panchayat constituencies, or assigning seats
- (b) Panchayat elections cannot be challenged casually; they can only be disputed through Properly legal procedure after the elections

Article 243 N

Continuance of existing laws and Panchayats

ensures a smooth transition to the new Panchayati Raj system by allowing old laws to remain temporarily valid, while the State makes necessary changes to comply with updated constitutional framework

Article 243 M

Part not to apply to certain areas

exclude certain areas, like tribal regions, & some North-Eastern states, from the Panchayat system to respect their unique governance traditions, and local customs. However provisions can be extended to these areas With necessary modification through specific laws

Nothing in this Part shall apply to -
a) Nagaland, Meghalaya, Mizoram (Panchayati Raj system do not exists)
b) Hill areas of Manipur (District Councils exists here)

Application to Union territories

Provisions of Part IX of the Constitution which deals with the Panchayats, shall apply to UTs with certain modification and exceptions

Article 243 L

Elections to the Panchayats

All elections of Panchayats conducted by - State Election Commission
The State Election Commissioner - Appointed by the Governor

The condition of service and tenure of office of State Election Commission - determined by Governor

Constitution of Finance Commission to review financial position

The Governor of a State shall, as soon as may be within one year from the commencement of the Constitution (Seventy-third Amendment) Act, 1992, and thereafter at the expiration of every fifth year, constitute a Finance Commission to review the financial position of the Panchayats and to make recommendations to the Governor

Article 243 K

Audit of accounts of Panchayats

The State Legislature ensures financial transparency and accountability of Panchayats by requiring them to maintain proper accounts and have them audited regularly

Article 243 I

Powers to impose taxes by, and Funds of, the Panchayats

State Legislature can authorise the Panchayat - To levy, collect and appropriate taxes, duties, tolls, and fees, grants-in-aid and establishment of funds for Panchayat to deposit and withdraw money, ensuring proper financial management

Article 243 G

Powers, authority and responsibilities of Panchayats

Legislature of a State may, by law, endow the Panchayats with such powers and authority and may be necessary to enable them to function as institutions of self-government.

Evolution of Panchayati Raj

- Balwant Rai Mehta Committee, 1957 - Recommendation of 3-tier Panchayati Raj System
- Rajasthan 1st Establish Panchayati Raj - at Nagaur, on 2 Oct. 1959
- Ashok Mehta Committee, 1977 - Proposed 2-tier Panchayati Raj System
- G.V.K. Rao Committee, 1985 - Reviewed the working of Constitution in relation to the working of the Panchayats and Municipalities
- L M Singhvi Committee, 1986 - Recommendations of The Panchayati Raj institutions should be constitutionally, recognized, protected, and preserved
- Thungon Committee, 1988
- Gadgil Committee, 1988

Article 243

Definition

"Gram Sabha" means a body consisting Of persons registered in the electoral rolls relating to a village comprised within the area of Panchayat at the village level.

- District - A district in a state
- Gram Sabha - A body consisting of persons registered in the electoral rolls within the area of Panchayat at village level
- Intermediate level - Level between village and district levels specified by Governor
- Panchayat - Any institution of self-government constituted under Art 243B, for rural areas
- Panchayat Area - The territorial area of Panchayat
- Population - Population as ascertained at last preceding Census
- Village - A village specified by the Governor

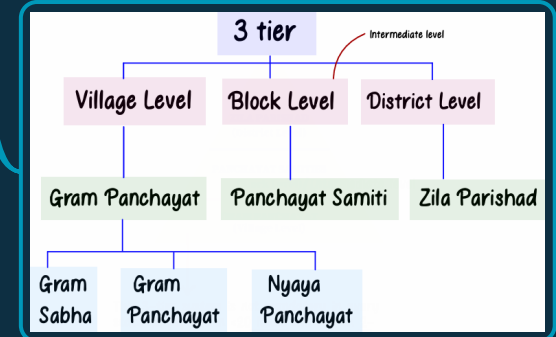
Gram Sabha

A Gram Sabha may exercise such powers and perform such functions at the village level as the Legislature of a State may, by law, provide.

Article 243 B

Constitution of Panchayats

There shall be constituted in every State, Panchayats at the village, intermediate and district levels in accordance with the provisions of this Part.



Article 243 C

Composition of Panchayats

All the seats in a Panchayat shall be filled by persons chosen by direct election

The Chairperson of a Panchayat at the village level shall be elected in such manner as the Legislature of a State may, by law, provide

Article 243 D

Reservation of seats

Seats shall be reserved for -
a) the Scheduled Castes
b) the Scheduled Tribes, in every Panchayat proportion to the total number of seats to be filled by direct election in that Panchayat.

Not less than one-third (including the number of seats reserved for Women belonging to the Scheduled Castes and the Scheduled Tribes) of the total number of seats to be filled by direct election in every Panchayat shall be reserved for women.

Article 243 E

Duration of Panchayats, etc.

Every Panchayat, unless sooner dissolved under any law for the time being in force, shall continue for five years from the date appointed for its first meeting and no longer.

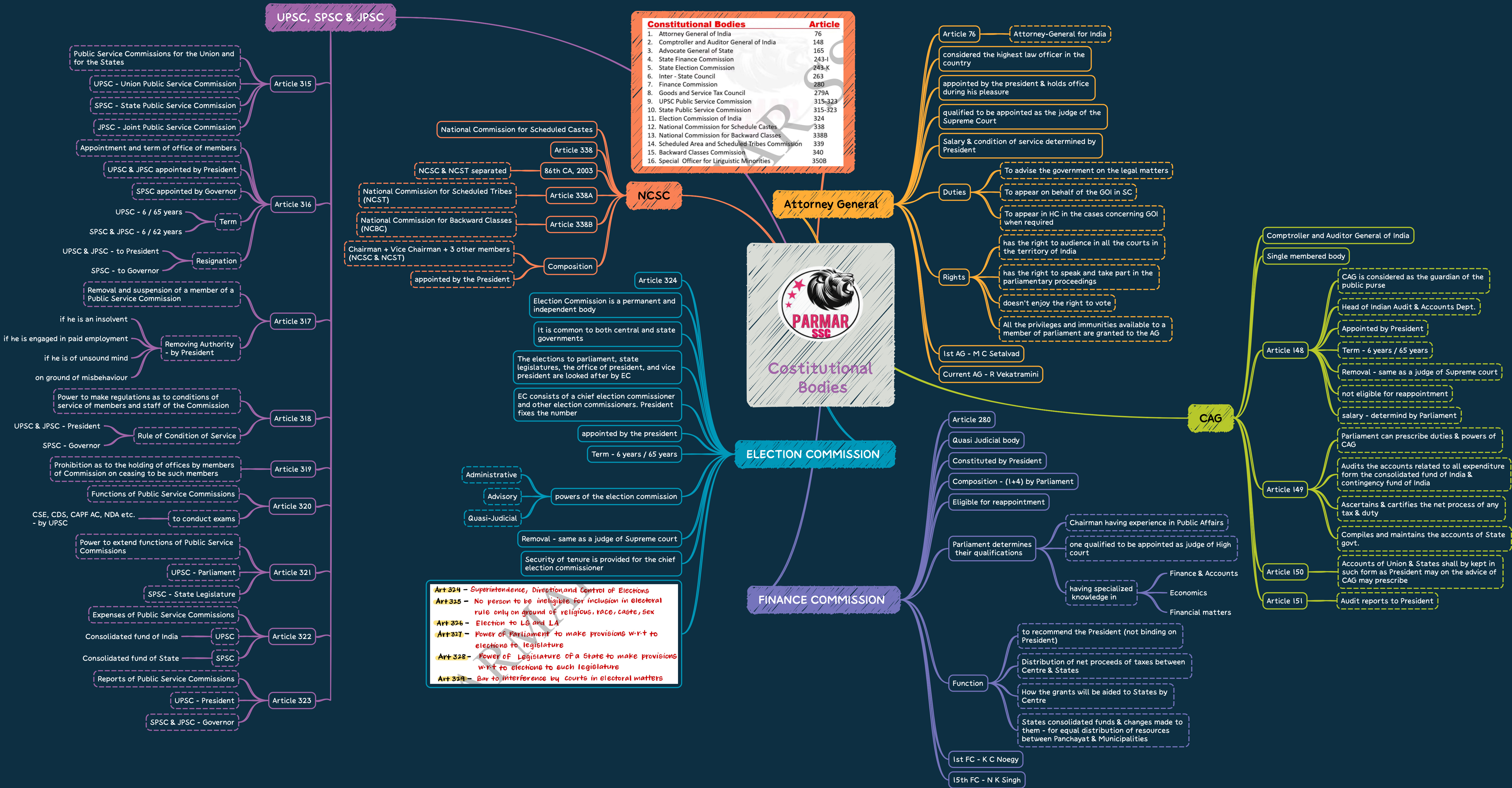
Article 243 F

Disqualifications for membership

A person shall be disqualified for being chosen as, and for being, a member of a Panchayat

If he is so disqualified by or under any law for the time being in force for the purposes of elections to the Legislature of the State concerned: Provided that no person shall be disqualified on the ground that he is less than twenty-five years of age, if he has attained the age of twenty-one years

If he is so disqualified by or under any law made by the Legislature of the State.



The Crown Rule (1858-1947)

The Company Rule (1773-1858)

